

Attached to the deposition notice was a request for production of documents related to the Notice. The parties agree that this request was *otherwise* beyond the period of time set by the Court's scheduling order for written discovery. Request No. 1 was for documents generated or reviewed or relied upon when responding to the topics in the deposition notice. Request No. 3 was for documents related to delay claims made to Diablo on battery storage projects for the same reasons and during the same time period as the delays for this Project. Diablo proposed that the first request could be satisfied by the deponents bringing the documents they reviewed to the depositions. Fluence rejected this proposal. The additional requests were beyond the court's then-effective discovery order.

Diablo did not produce witnesses and did not file a Motion to Quash. Diablo did, however, assert timely objections.

For the vast majority of the disputed topics, Diablo asserts that the requests cover areas that are not relevant. For many, they also assert that, in other depositions, Fluence could have explored these areas but declined to do so. That argument ignores that the resulting questions would have been beyond the scope of the deposition for which that individual was testifying. Fluence's failure to explore PMQ areas in individual depositions or explore a topic not agreed-to in a deposition of a PMQ for a different topic does not foreclose their ability to take those depositions at this time.

After a review of the parties' arguments the Court orders as follows:

Topic 5 – Diablo must produce a responsive witness

Topic 6 – Diablo must produce a witness to testify as to facts that form the basis of Diablo's battery availability liquidated damage claims

Topic 14 – this request is denied

Topic 16 – Diablo must produce a witness to testify as to Diablo's responsibilities or obligations relating to permitting under the parties' contract

Topics 17-20 – Diablo must produce a responsive witness. If Diablo will not be pursuing previously pled claims, theories, or defenses, it must so state either by amending pleadings or in verified discovery responses—thereby foreclosing such theories at trial. Finally, while some of the other documents may be slightly more tangential, they are within the permissible scope of discovery.

Topics 22 & 23 – Diablo must produce a responsive witness. If no such evaluations occurred (Topic 22), then Diablo must so state and thereby avoid producing a witness.

As explained above, Fluence's Motion is **granted in part and denied in part**. The request for sanctions is denied.

21. 9:00 AM

CASE NUMBER: C23-02528

CASE NAME: FLUENCE ENERGY, LLC VS. DIABLO ENERGY STORAGE, LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS IN COMPLIANCE WITH DISCOVERY RESPONSES BY A DATE CERTAIN**

FILED BY: FLUENCE ENERGY, LLC

TENTATIVE RULING:

Plaintiff Fluence Energy LLC brings this Motion to Compel Production of Documents in Compliance with Discovery Responses by a Date Certain and for Sanctions against Defendant Diablo Energy Storage LLC. Due to a court calendaring error, the Court has had to prepare for this motion on an expedited basis, so this tentative ruling will be more summary than it otherwise may have been. (The Court has been able to review all materials on an expedited basis.)

This Motion seeks additional responses to Request Nos. 35, 39, and 42. Diablo has claimed that further documents are not relevant, that they were already produced, that Diablo does not have these documents, or that they are unduly burdensome to produce.

To the extent relevant responsive documents were already produced, Diablo is obligated to identify those documents. That a request is answered in part by documents already produced does not relieve Diablo of the obligation of producing additional relevant documents.

To the extent that Diablo does not have responsive documents in its possession, custody, or control, it must so state.

The Court agrees that Diablo's claim of late-breaking burden are unavailing, both because the trial has been continued until July 2026 and because this discovery dispute has been going on for years. Diablo must comply with its discovery obligations.

Diablo also argues that the documents Fluence seeks are not relevant either because they relate to claims Diablo has disavowed in recent correspondence or because they go beyond the claims and defenses of the parties. If Diablo will not be pursuing previously pled claims, theories, or defenses, it must so state either by amending pleadings or in verified discovery responses—thereby foreclosing such theories at trial. Finally, while some of the other documents may be slightly more tangential, they are within the permissible scope of discovery.

For the foregoing reasons, Fluence's Motion to Compel is **granted**. The Court declines to impose sanctions.

Courtroom Clerk's Calendar
Add On

22. 9:00 AM CASE NUMBER: MSC22-00088
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: COSTS RECOMPUTATION**
FILED BY: